

CHAPTER 24

An Act to amend the law relating to private street works in England and Wales. [18th May, 1961]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Amendment of
s. 189 of
Highways Act,
1959.
7 & 8 Eliz. 2.
c. 25.

1. In the proviso to subsection (1) of section one hundred and eighty-nine of the Highways Act, 1959 (which relates to the execution of street works in private streets under the code of 1875), after the word "owners" there shall be inserted the words "or occupiers".

Amendment as
to liability of
frontagers in
respect of
street works
in part of
private street.

2.—(1) Where before the commencement of the Highways Act, 1959, street works were executed under any of the relevant street works enactments with respect to a part only of a private street, being a part consisting of the whole or a part of a footway on one side only of the street, and those works were executed only by, or at the expense only of, the owners or occupiers of the premises fronting the footway or part of a footway, as the case may be, the following provisions of this section shall have effect.

38 & 39 Vict.
c. 55.
55 & 56 Vict.
c. 57.

In this subsection "the relevant street works enactments" means section one hundred and fifty of the Public Health Act, 1875, the Private Street Works Act, 1892, and any local Act making provision corresponding with the provisions of that section or of the said Act of 1892.

(2) Where the code of 1892 applies in the county borough or county district in which the private street is, and after the commencement of this Act the street works authority resolve under subsection (1) of section one hundred and seventy-four of the Highways Act, 1959, to execute street works with respect to any part of the street constituting or comprising the whole or a part of a footway on the side of the street other than that in which street works were executed as mentioned in the foregoing subsection, then, notwithstanding anything in the first-mentioned subsection but subject to the other provisions of the code of 1892, the expenses incurred by the authority in executing those works with respect to that footway or part of a footway shall be apportioned only between the premises fronting that footway or part, as the case may be, and references in Part IX of the Highways Act, 1959, to the premises liable to be charged with the expenses of street works under the code of 1892 shall be construed in accordance with the provisions of this subsection.

(3) Where the code of 1875 applies in the county borough or county district in which the private street is, and after the commencement of this Act the street works authority require

street works to be executed under subsection (1) of section one hundred and eighty-nine of the Highways Act, 1959, with respect to any part of the street constituting or comprising the whole or a part of a footway on the side of the street other than that in which street works were executed as mentioned in subsection (1) of this section, then, notwithstanding anything in the first-mentioned subsection, the requirement with respect to that footway or part of a footway shall be made only of the owners or occupiers of the premises fronting that footway or part, as the case may be.

(4) References in this section to a footway include references to any roadside waste, and to any channel by the side of a footway.

3.—(1) This Act may be cited as the Private Street Works Act, 1961. Short title,
interpretation,
commence-
ment and
extent.

(2) Expressions used in this Act to which meanings are assigned by the Highways Act, 1959, shall have the same meanings in this Act as in that Act.

(3) Any reference in this Act to any enactment is a reference thereto as amended by any other enactment, including this Act.

(4) This Act shall come into operation at the expiration of one month beginning with the day on which it is passed.

(5) This Act shall not extend to Scotland or Northern Ireland.

CHAPTER 25

An Act to extend to six months the period of grace for the payment of renewal fees for patents and the payment of fees for the extension of the period of copyright in registered designs, to provide a like period of grace for the making of applications for such extension, to validate certain extensions of the said period of copyright, and to provide for amending provisions of the Patents Act, 1949, relating to fees. [22nd June, 1961]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) In subsection (5) of section twenty-two of the Patents Act, 1949 (which provides for extension by not more than three months of the prescribed period for the payment of a renewal fee) and in subsection (2) of section eight of the Registered Designs Act, 1949 (under which a fee must be paid not later than three months after the expiration of the period of copyright in a Period of
grace for
payment of
fees and for
applications.